

Therefore the court awards sanctions against Plaintiff's counsel of \$3,000 due and payable in 10 calendar days.

[4] Orders

The court denies Plaintiff's motions to Compel Further Deposition of Defendant and Further Responses to the Defendant's Written Responses to the Request for Production of Documents.

The court does not rule on the issue of whether Defendant should produce the 1000 pages of documents it received under a FOIA request because the Plaintiff has not asserted that those documents are covered by a timely request for production at issue before the court.

Law & Motion
Add On

14. 9:00 AM CASE NUMBER: C25-01567

CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)

HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

Defendant Mount Diablo School District's demurrer is **sustained without leave to amend as to Monte Gardens Elementary School and otherwise it is sustained with leave to amend as to the entire complaint.** Plaintiffs have 30 days from notice of entry of order to file and serve an amended complaint. Additional time has been given to amend the complaint to allow time for Plaintiff Dean to file an application to be appointed guardian *ad litem* before filing an amended complaint.

Plaintiffs Alexis Dean and Minor (a minor and Dean's child) filed this complaint against Monte Gardens Elementary School (Mount Diablo Unified School District). (The Court is using a pseudonym for the minor plaintiff in an abundance of caution, see Code of Civil Procedure § 372.5). Plaintiffs alleged two causes of action, one for general negligence and a second for intentional torts, relating to the school's treatment of Minor.

Defendant demurs to the complaint on several grounds, including that Monte Gardens is not a proper defendant, Plaintiffs have not alleged compliance with the Government Claims Act, Plaintiffs have not pled what duty was breached, Plaintiffs have not alleged facts to state a cause of action for negligence or intentional tort and Dean has not alleged direct injury to herself.

The allegations in the complaint and the briefing show that Dean is attempting to act as Minor's guardian *ad litem*. Dean has not been appointed guardian *ad litem* for Minor. Dean shall file

an application to be appointed guardian *ad litem* or be prepared to explain why no such appointment is necessary at the next case management conference.

Plaintiffs filed their opposition late. The Court exercises its discretion and will consider the opposition, however, the failure to timely file papers in the future may result in the Court disregarding those papers. (California Rules of Court, Rule 3.1300(d).)

Defendant argues that the individual school is not a proper defendant and instead that the School District is a proper defendant here. (See, Education Code § 35162.) Plaintiffs argue that Defendant knows it is being sued. The Court finds that Defendant is correct and Plaintiffs should name the School District as the defendant. The demurrer is sustained as to Monte Gardens Elementary School without leave to amend. However, Plaintiff may amend to allege a proper Defendant.

Defendant argues that Plaintiff has not alleged compliance with the Government Claims Act. Government Code “Section 905 requires the presentation of ‘all claims for money or damages against local public entities,’ subject to exceptions not relevant here. Claims for personal injury and property damage must be presented within six months after accrual; all other claims must be presented within a year. (§ 911.2.) ... ‘Thus, under these statutes, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity.’ [Citation.]” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 737-738.) Further, substantial compliance can sometimes be used in the government claim context, but it has limitations. (See, e.g. *Nguyen v. Los Angeles County Harbor/UCLA Medical Center* (1992) 8 Cal.App.4th 729, 732-733.)

Here, Plaintiffs allege that they filed a complaint against Defendant with the California Department of Education (CRD) on October 2, 2024, and received a right to sue letter on January 14, 2025. Plaintiffs argue that these allegations show substantial compliance with the Government Claims Act and provided Defendant with timely notice of Plaintiffs’ claims. Plaintiffs also argue that they subsequently filed a government claim, but provide no details.

Some cases have held that submitting a FEHA complaint to the Department of Fair Housing and Employment is sufficient to sue a public entity for FEHA claims because the legislative intent shows that FEHA actions are exempt from the general Government Claims Act requirements. (*Garcia v. L.A. Unified Sch. Dist.* (1985) 173 Cal.App.3d 701, 711.) Plaintiffs did not bring a FEHA claim here. Plaintiffs have provided no law that shows submitting their tort claims to the California Department of Education or Civil Rights Division would constitute substantial compliance with the Government Claims Act or that there is an exemption similar to the FEHA exemption. Further, the details of Plaintiffs’ submission to the CRD have not been provided nor alleged.

The Court finds that Plaintiffs have not alleged facts showing compliance or substantial compliance with the Government Claims Act. The demurrer is sustained with leave to amend.

Defendant argues that Plaintiffs have not alleged a statutory basis for their claims (this argument was not identical to the reasons listed in the demurrer, but it is reasonably included in demurrer reasons 3 and 4). Defendant correctly points out that under Government Code section

815(a), “[e]xcept as otherwise provided by statute . . . a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” And that “direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on [] general tort provisions[.]” (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.)

Plaintiffs have not alleged a statute or statutes that provide liability for a public entity and therefore the demurrer is sustained with leave to amend on this ground.

Defendant argues that Plaintiffs have not alleged sufficient elements to show negligence, including breach of a duty, and that Plaintiffs have not specified what intentional tort is alleged here.

Plaintiffs argue that the school has a duty to prevent discrimination towards students in the school. Plaintiffs have not alleged a statutory basis for liability against the school district and those allegations are helpful in determining what duties the school district may owe in the situation. The Defendant’s demurrer as to the cause of action for negligence is therefore sustained with leave to amend.

Plaintiffs argue that they have alleged several intentional torts, including punishing Minor at school and treating her in a discriminatory nature. Plaintiffs’ complaint does not clearly identify the names of their intentional tort cause(s) of action. Further, Plaintiffs have not provided any legal citations that show these are actionable claims against a public entity. The Defendant’s demurrer as to the cause of action for intentional tort is sustained with leave to amend on this ground.

Defendant argues that Plaintiff Dean has not alleged any harm to herself and thus, does not have standing to bring her own claims. Plaintiffs argue that Dean has derivative harm to herself and standing to bring claims on behalf of Minor. Because Plaintiffs have not alleged a valid cause of action for Minor, the Court cannot determine if Dean has standing to bring a claim for her own injuries. Plaintiffs may amend their complaint to clarify what claims Dean is bringing in her individual capacity.

The demurrer is sustained as to the entire complaint with leave to amend. Plaintiffs must file an amended complaint within 30 calendar days of notice of entry of order.